

		<u>Motion to Be Relieved as Counsel of Record</u> Counsel Fortra Law through Jacoby Perez moves to be relieved as counsel of record for Defendant Tri Minh Doan ("Client"). For the following reasons, the motion is GRANTED. The court has reviewed the materials submitted by Moving Counsel and finds that counsel has complied with the requirements of Rule 3.1362. The clerk is ordered to update the proposed order to reflect the following changes: - Add appearances in Section 2 - In section 7(a), strike the information currently included and indicate the next scheduled hearing is set for: 07/09/2026 at 10:00 AM in Department C10, Central Justice Center, 700 W. Civic Center Dr., Santa Ana, CA 92701 - In section 7(b), modify the information currently included and indicate the hearing will also concern: Motion by Attorney John Anthony Thompson to Be Relieved as Counsel of Record The court's order shall become effective upon the filing of the proof of service of the signed order on the Client. Moving Counsel is ordered to give notice by non-electronic and electronic means to Client Tri Minh Doan and all other parties.
1:30 p.m.		
1	Okanina v. Hyundai Motor America	Defendant Hyundai Motor America's ("HMA") motion to compel arbitration and stay the action is DENIED. HMA's request for judicial notice is GRANTED. Plaintiff's Evidentiary Objections to Declarations of Jennah Feeley and Vijay Rao should be OVERRULED. [The moving party "is not required to authenticate an opposing party's signature on an arbitration agreement as a preliminary matter." (<i>Ruiz v. Moss Bros Auto Group, Inc.</i> (2014) 232 Cal.App.4th 836, 846.)] The right to arbitration depends upon contract, and thus, a motion to compel arbitration is akin to a suit in equity seeking specific performance of that contract. (See <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) The parties may, among other things, agree that the arbitration agreement will be controlled by the Federal Arbitration Act ("FAA"), which includes both procedural and substantive provisions. (See <i>Rodriguez v. American Technologies, Inc.</i> (2006) 136 Cal.App.4th 1110, 1122.) The Federal Arbitration Act governs here as the Warranty Arbitration Provision expressly provides that it "shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16." (Feeley Decl., Exh. 2 [Warranty] at p. 14.) Accordingly, the FAA applies. The FAA states that written arbitration agreements "shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or

in equity for the revocation of any contract.” (9 U.S.C. § 2.) The United States Supreme Court has described this provision as reflecting both a “liberal federal policy favoring arbitration,” and the “fundamental principle that arbitration is a matter of contract.” (*AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.)

The FAA permits agreements to arbitrate to be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” (*Concepcion*, supra, 563 U.S. at p. 339.) When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 944.) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (*Green Tree Fin. Corp. v. Randolph* (2000) 531 U.S. 79, 91.)

On a motion to compel arbitration under the FAA, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (*Brennan v. Opus Bank* (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; *Dean Witter Reynolds, Inc. v. Byrd* (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].)

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1. Existence of Agreement to Arbitrate

A party moving to compel arbitration bears an initial burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–166.) The moving party “can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541; see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060 [holding same].) For this step, “it is not necessary to follow the normal procedures of document authentication.” (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218.) If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.

Warranty Booklet

Plaintiff, in opposition, contends that HMA’s reliance on the warranty booklet is defective because HMA failed to properly authenticate it. However, HMA, as the moving party, “is not required to authenticate an opposing party’s signature on an arbitration agreement as a preliminary matter” (*Ruiz v. Moss Bros Auto Group, Inc.* (2014) 232 Cal.App.4th